

information needed for proper accounting and as a result, the pleading may be alleged with less particularity.

Accordingly, the motion to strike is denied.

To state a cause of action for Intentional Infliction of Emotional Distress (“IIED”) Plaintiff must allege: (1) “extreme and outrageous conduct by defendant with an intention of causing or reckless disregard of the probability of causing emotional distress”; (2) “severe or extreme emotional distress”; and (3) “actual and proximate causation of the emotional distress by the defendant’s outrageous conduct”. (*Hughes v. Pair* (2009) 46 Cal.4th 1035, 1050.) An outrageous conduct is one that was so extreme as to be beyond all bounds tolerated by society, which must be alleged with great specificity. (*Id.* at 1051; *Yau v. Santa Margarita Ford, Inc.* (2014) 229 Cal.App.4th 144, 160-161.) Defendant argues that the Complaint fails to state conduct so extreme as to be beyond all bounds of decency tolerated by society and therefore cannot meet the elements necessary to allege a cause of action.

In opposition, Plaintiff cites *Kaushansky v. Stonecroft Attorneys, APC* (2025) 109 Cal.App.5th 788, in which the court held that “[e]motional distress damages may be recoverable if directly caused by an attorney’s conduct in breach of his fiduciary duties.” (*Id.* at 767.) But not every claim for breach of fiduciary duty supports a claim for emotional distress. The *Kaushanky* court recognized the lines of cases which held that “ ‘[e]motional distress damages ordinarily are not recoverable in a legal malpractice action if the representation concerned primarily the client’s economic interests and the emotional injury derived from an economic loss.’ [Citation.]” (*Id.* at 768.) It held that, even in the case of breach of fiduciary duty, the client must sufficiently allege that the “ ‘intentional or affirmative misconduct by an attorney or noneconomic injury resulting from an attorney’s professional negligence.’ [Citation.]” (*Ibid.*) Here, the allegations show that Plaintiff’s alleged emotional distress ensued from purely economic losses of not receiving the expected settlement rather than Defendant’s alleged misconduct that caused the economic losses.

7.

CASE #	CASE NAME	HEARING NAME
CVME2513330	HOLLOWAY VS RABINEAU	MOTION TO STRIKE

Tentative Ruling: See above.

8.

CASE #	CASE NAME	HEARING NAME
CVME2602721	VILLEDA VS INTERNATIONAL COFFEE & TEA, LLC	MOTION TO COMPEL ARBITRATION

Tentative Ruling: GRANT the motion to compel arbitration and stay civil proceedings pending arbitration.